End User License Agreement

This End User License Agreement (this "Agreement") is a binding agreement between Algorithmiq Inc., a Delaware corporation ("Licensor"), and the individual or organization that accepts this Agreement by enabling or using the Function through the IBM Quantum platform (“Licensee” or “You”).

LICENSOR PROVIDES THE FUNCTION SOLELY ON THE TERMS AND CONDITIONS SET FORTH IN THIS AGREEMENT AND ON THE CONDITION THAT LICENSEE ACCEPTS AND COMPLIES WITH THEM.

BY CHECKING THE CERTIFICATION BOX ON THE IBM QUANTUM PLATFORM THAT CONFIRMS YOU HAVE READ AND AGREE TO THE RELEVANT FUNCTION LICENSE AGREEMENTS WHEN ENABLING FUNCTIONS, YOU (A) ACCEPT THIS AGREEMENT AND AGREE THAT YOU AND, IF APPLICABLE, YOUR ORGANIZATION ARE LEGALLY BOUND BY ITS TERMS; AND (B) REPRESENT AND WARRANT THAT: (I) YOU ARE OF LEGAL AGE TO ENTER INTO A BINDING AGREEMENT; AND (II) IF YOU ARE ACTING ON BEHALF OF A CORPORATION, GOVERNMENTAL ORGANIZATION, OR OTHER LEGAL ENTITY, YOU HAVE THE RIGHT, POWER, AND AUTHORITY TO ENTER INTO THIS AGREEMENT ON ITS BEHALF. IF YOU DO NOT AGREE TO THE TERMS OF THIS AGREEMENT, DO NOT CHECK THE CERTIFICATION BOX OR ENABLE OR USE THE FUNCTION.

This Agreement is accepted electronically through the certification checkbox on the IBM Quantum platform and does not require manual signature or completion of any fields.

1. Definitions. For purposes of this Agreement, the following terms have the following meanings:

"**Authorized Users**" means an individual who accesses or uses the Function through the IBM Quantum platform under a valid IBM Quantum subscription or plan.

"**Documentation**" means Licensor's user manuals, handbooks, and installation guides relating to the Function provided by Licensor to Licensee either electronically or in hard copy form/end user documentation relating to the Function available at https://docs.quantum.ibm.com/guides/algorithmiq-tem.

"**Intellectual Property Rights**" means any and all registered and unregistered rights granted, applied for, or otherwise now or hereafter in existence under or related to any patent, copyright, trademark, trade secret, database protection, or other intellectual property rights laws, and all similar or equivalent rights or forms of protection, in any part of the world.

"**Person**" means an individual, corporation, partnership, joint venture, limited liability company, governmental authority, unincorporated organization, trust, association, or other entity.

"**Function**" means Licensor's Quantum Function(s) made available to users through the IBM Quantum Functions catalog on the IBM Quantum platform, designed to enhance quantum computations.

"**Term**" means the period during which the Function is made available through the IBM Quantum platform, unless earlier terminated in accordance with this Agreement.

"**Third Party**" means any Person other than Licensee or Licensor.

"**Updates**" means any updates, bug fixes, patches, or other error corrections to the Function that Licensor generally makes available free of charge to all licensees of the Function.

2. License Grant and Scope. Subject to the terms and conditions of this Agreement, Licensor grants Licensee a non-exclusive, non-sublicensable, and non-transferable license to: (a) use the Function and related materials as necessary for Licensee's authorized activities, projects, or deliverables conducted under or in connection with this Agreement; and (b) make and use a reasonable number of copies of the accompanying Documentation solely as necessary to support Licensee's permitted use of the Function. Except as expressly permitted herein, Licensee shall not copy, modify, distribute, sublicense, lease, sell, or otherwise make the Function or Documentation available to any third party. All rights not expressly granted to Licensee are reserved by Licensor.

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4. Responsibility for Use of Function. Licensee is responsible and liable for all use of the Function and Documentation through its IBM Quantum account. Licensee's IBM Quantum account credentials and platform access are governed by IBM's terms. Licensee shall use the Function only through properly authenticated IBM Quantum sessions.

5. Suspension of Access. Licensor may, at its sole discretion, suspend or restrict the availability of the Function, including for scheduled or emergency maintenance, where such suspension is necessary to: (a) comply with applicable law, regulation, or court order; (b) avoid, prevent, or mitigate any adverse impact to the Function, including any adverse impact to IBM systems or infrastructure attributable to the Function, or to other users of the Function; or (c) perform maintenance on the Function. Any suspension or restriction of access to the IBM Quantum platform itself is governed by IBM's terms. Licensee acknowledges that Licensor does not have a direct means of contacting Licensee through the IBM Quantum platform. Accordingly, where feasible, Licensor will give notice of any suspension of the Function through IBM or by such other means as are made available through the IBM Quantum platform or the Documentation, and will limit the suspension to no longer than is reasonably necessary to remedy the underlying cause or complete the maintenance.

6. Compliance Measures.

(a) The Function contains technological copy protection and other security features designed to prevent unauthorized use of the Function, including features to protect against any use of the Function that is prohibited under 23. Licensee shall not attempt to, remove, disable, circumvent, or otherwise create or implement any workaround to, any such copy protection or security features.

(b) On Licensor's written request, Licensee shall provide a written certification, signed by an officer of Licensee, confirming that Licensee and its Authorized Users are in compliance with this Agreement or, if Licensee discovers any noncompliance, describing the noncompliance and the steps taken to remedy it. Any such request shall be limited to information reasonably necessary to verify compliance with this Agreement in relation to the Function and shall not require access to, or the disclosure of, any IBM Customer Data (including Customer Inputs) or IBM Quantum platform systems.

7. Maintenance and Support. Licensor has no obligation under this Agreement to provide support, maintenance, upgrades, modifications, or new releases of the Function or Documentation to Licensee. However, Licensor agrees to use its reasonable efforts to correct errors in the Function and Documentation within a reasonable time and shall provide Licensee with any corrections it makes generally available to other participants. For avoidance of doubt, nothing in this Section requires Licensor to maintain uptime or restore access during any suspension imposed by IBM under its platform terms.

8. Collection and Use of Information.

(a) Licensee acknowledges that Licensor may, directly or indirectly through third-party service providers, collect and store only the following information relating to the Function, which shall in no event include any IBM Customer Data:

(i) technical usage metrics and performance data reasonably necessary to operate, maintain, and improve the Function; and

(ii) error logs and diagnostic information reasonably necessary to identify and resolve technical issues, including issues relevant to the compliance measures in 36. Licensor does not access, inspect, store, or use Customer Inputs, meaning any data, circuits, parameters, or other content submitted by Licensee to the Function, beyond what is strictly necessary to process Licensee’s request and deliver the Function’s output.

(b) Licensee agrees that Licensor may use only such information for the following purposes:

(i) providing and operating the Function;

(ii) improving the performance and reliability of the Function, provided that Licensor shall not use any IBM Customer Data for any improvement purpose; and

(iii) verifying compliance with this Agreement, without accessing, collecting, or using any IBM Customer Data.

(c) The Function is not designed or intended for the processing, storage, or use of personal data, except for the limited personal data necessary to register and activate the Licensee's account. The Licensee agrees not to upload, store, or process any additional personal data using the Function. The Licensor shall not be liable for any breaches of data protection laws arising from the Licensee's unauthorized use of the Function for personal data processing.

(d) For the limited personal data required for account registration and activation, the Licensor agrees to process such data in compliance with applicable data protection laws, including the General Data Protection Regulation (GDPR). This includes implementing appropriate technical and organizational measures to protect the data and ensuring it is used solely for the intended purpose.

(e) Licensor shall not use Customer Inputs or any other IBM Customer Data to train models, develop new products, improve the Function, or for any purpose other than providing the Function to Licensee. All Customer Inputs and outputs are and remain the property of Licensee.

(f) For purposes of this Agreement, "IBM Customer Data" means all data, content, and information of IBM or of any IBM customer (including Licensee and its Authorized Users) that is submitted to, processed by, stored in, or generated through the

Function or the IBM Quantum platform, including Customer Inputs, circuits, parameters, job data, and outputs. Notwithstanding anything to the contrary in this Agreement, IBM Customer Data is expressly excluded from all technical usage metrics, performance data, error logs, diagnostic information, and compliance-verification activities described in this Agreement, and Licensor shall not collect, access, store, or use IBM Customer Data for any such purpose or for the purpose of improving the Function or any other product or service. Any technical usage metrics, performance data, logs, or diagnostic information collected under Section 8(a) shall be limited to operational data about the functioning of the Function that does not contain, reveal, or derive from IBM Customer Data.

9. Intellectual Property Rights and Feedback.

(a) Licensee acknowledges that, as between Licensee and Licensor, Licensor owns all right, title, and interest, including all intellectual property rights, in and to the Function and Documentation. For the avoidance of doubt, nothing in this Agreement grants Licensor any right, title, or interest in Licensee's data, inputs, or outputs processed through the Function.

(b) If Licensee or any of its employees or contractors submits, orally or in writing, suggestions or recommended changes to the Function or Documentation, including without limitation, new features or functionality relating thereto, or any comments, questions, suggestions, or the like ("**Feedback**"), Licensor is free to use such Feedback irrespective of any other obligation or limitation between the parties governing such Feedback. Licensee hereby assigns to Licensor on Licensee's behalf, and on behalf of its employees, contractors, and/or agents, all right, title, and interest in, and Licensor is free to use, without any attribution or compensation to any party, any ideas, know-how, concepts, techniques, or other intellectual property rights contained in the Feedback, for any purpose whatsoever, although Licensor is not required to use any Feedback.

10. Disclaimer of Warranties; Beta Service Disclaimer.

(a) THE FUNCTION AND DOCUMENTATION ARE PROVIDED "AS IS" AND LICENSOR HEREBY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE. LICENSOR SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND ALL WARRANTIES ARISING FROM COURSE OF DEALING, USAGE, OR TRADE PRACTICE. LICENSOR MAKES NO WARRANTY OF ANY KIND THAT THE FUNCTION AND DOCUMENTATION, OR ANY PRODUCTS OR RESULTS OF THE USE THEREOF, WILL MEET LICENSEE'S OR ANY OTHER PERSON'S REQUIREMENTS, OPERATE WITHOUT INTERRUPTION, ACHIEVE ANY INTENDED RESULT, BE COMPATIBLE OR WORK WITH ANY SOFTWARE,

SYSTEM, OR OTHER SERVICES, OR BE SECURE, ACCURATE, COMPLETE, FREE OF HARMFUL CODE, OR ERROR FREE.

(b) The IBM Quantum platform service and this Function are each provided as a beta service and do not constitute a generally available IBM Cloud Service. Beta services are provided for evaluation and testing purposes only and may not meet the performance, compatibility, or reliability standards of generally available services. These services are not designed for use with any Content containing personal data or for deployment in production environments. Licensee is solely responsible for ensuring that any Content it wishes to retain is removed from the service prior to its expiration or termination.

11. Limitations of Liability. IN NO EVENT WILL LICENSOR BE LIABLE UNDER OR IN CONNECTION WITH THIS AGREEMENT UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, AND OTHERWISE, FOR ANY: (A) CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, ENHANCED, OR PUNITIVE DAMAGES; (B) INCREASED COSTS, DIMINUTION IN VALUE OR LOST BUSINESS, PRODUCTION, REVENUES, OR PROFITS; (C) LOSS OF GOODWILL OR REPUTATION; (D) USE, INABILITY TO USE, LOSS, INTERRUPTION, DELAY OR RECOVERY OF ANY DATA, OR BREACH OF DATA OR SYSTEM SECURITY; OR (E) COST OF REPLACEMENT GOODS OR SERVICES, IN EACH CASE REGARDLESS OF WHETHER LICENSOR WAS ADVISED OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES OR SUCH LOSSES OR DAMAGES WERE OTHERWISE FORESEEABLE.

12. Export Regulation. The Function may be subject to export control laws and regulations of the United States, the European Union, and other jurisdictions. Licensee shall not access, use, export, re-export, release, or otherwise make the Function or Documentation available, directly or indirectly, in violation of any applicable export laws, including without limitation the U.S. Export Administration Regulations (EAR) and EU dual-use regulations. Licensee represents and warrants that it is not (a) located in, under the control of, or a national or resident of any country subject to U.S. or EU sanctions or embargoes, or (b) a person or entity listed on any U.S. or EU restricted parties list. Licensee shall not permit any person to access or use the Function from any such location or by any such person. Licensee shall comply fully with all applicable export and import laws to ensure that neither the Function nor any direct product thereof is used, exported, or re-exported in violation of such laws.

13. Without limiting the foregoing, Licensee shall not permit individuals who are resident in, domiciled in, or physically located within any of the following countries to access or use the Function: Afghanistan, Armenia, Azerbaijan, Belarus, Burma, Cambodia, Central African Republic, China (PRC) and Hong Kong (SAR), Cuba, Democratic Republic of the Congo, Eritrea, Georgia, Haiti, Iran, Iraq, Kazakhstan, North Korea, Kyrgyzstan, Laos, Lebanon, Libya, Macau,

Moldova, Mongolia, Russia, Somalia, South Sudan, Sudan, Syria, Tajikistan, Turkmenistan, Ukraine, Uzbekistan, Venezuela, Vietnam, Yemen, and Zimbabwe.

14. Term and Termination. This Agreement is effective upon your acceptance and will continue until the earlier of: (a) termination or expiration of the applicable IBM Quantum Functions Agreement or Statement of Work; (b) termination of your or your organization's access to the IBM Quantum platform; or (c) termination by Licensor in its sole discretion, with or without notice. Licensor may immediately terminate this Agreement or suspend access if it determines you have breached any term or if IBM suspends or terminates your access to the IBM Quantum platform.

15. Notwithstanding the foregoing, if an IBM Customer's Program Subscription Unit remains active at the time of any such termination or expiration, this Agreement shall continue in effect for that IBM Customer for the remaining duration of the active Program Subscription Unit term.

16. Licensor reserves the right to modify the terms of access to, or availability of, the Function in the event of changes to the billing, subscription, or commercial terms under which IBM makes the Function available to IBM Customers, provided that any such modification shall be communicated to Licensee in advance.

Upon expiration or termination, the license granted hereunder shall terminate automatically, and Licensee shall immediately cease using the Function and Documentation and delete or destroy all copies. Certification of deletion is not required for individual users accepting through the IBM Quantum platform.

This Section 13 and Sections 3, 4, 5, 6, 7, 8, 10, 11, and 12 shall survive any termination or expiration of this Agreement. No other provisions of this Agreement survive the expiration or earlier termination of this Agreement.

17. Miscellaneous.

(a) All matters arising out of or relating to this Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without giving effect to any choice or conflict of law provision or rule (whether of the State of Delaware or any other jurisdiction). Any legal suit, action, or proceeding arising out of or relating to this Agreement or the transactions contemplated hereby shall be instituted exclusively in the federal courts of the United States or the courts of the State of Delaware, in each case located in the State of Delaware, and each party irrevocably submits to the exclusive jurisdiction of such courts in any such legal suit, action, or proceeding. Service of process, summons, notice, or other document by email to such party's email address set forth herein

shall be effective service of process for any suit, action, or other proceeding brought in any such court.

(b) In no event shall Licensor be liable to Licensee, or be deemed to have breached this Agreement, for any failure or delay in performing its obligations under this Agreement, if and to the extent such failure or delay is caused by any circumstances beyond Licensor's reasonable control, including but not limited to: (i) acts of God; (ii) flood, fire, earthquake, other catastrophes, or explosion; (iii) war, invasion, hostilities (whether war is declared or not), terrorist threats or acts, riot or other civil unrest; (iv) government order, law, or actions; (v) embargoes or blockades in effect on or after the date of this Agreement; and (vi) national or regional emergency.

(c) All notices, requests, consents, claims, demands, waivers, and other communications hereunder shall be in writing and shall be deemed to have been given: (on the date sent by facsimile or email (with confirmation of transmission) if sent during normal business hours of the recipient, and on the next business day if sent after normal business hours of the recipient. Such communications must be sent to the respective parties at the following addresses: legal@algorithmiq.fi for Licensor and the email used to execute this Agreement for Licensee.

(d) This Agreement constitutes the sole and entire agreement between Licensee and Licensor with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter.

(e) Licensee shall not assign or otherwise transfer any of its rights, or delegate or otherwise transfer any of its obligations or performance, under this Agreement, in each case whether voluntarily, involuntarily, by operation of law, or otherwise, without Licensor's prior written consent, which consent Licensor may give or withhold in its sole discretion. No delegation or other transfer will relieve Licensee of any of its obligations or performance under this Agreement. Any purported assignment, delegation, or transfer in violation of this Section 14(e) is void. Licensor may freely assign or otherwise transfer all or any of its rights, or delegate or otherwise transfer all or any of its obligations or performance, under this Agreement without Licensee's consent. This Agreement is binding upon and inures to the benefit of the parties hereto and their respective permitted successors and assigns.

(f) This Agreement is for the sole benefit of the parties hereto and their respective successors and permitted assigns and nothing herein, express or implied, is intended to or shall confer on any other Person any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason of this Agreement.

(g) This Agreement may only be amended, modified, or supplemented by an agreement in writing signed by each party hereto. No waiver by any party of any of the provisions hereof shall be effective unless explicitly set forth in writing and signed by the party so waiving. Except as otherwise set forth in this Agreement, no failure to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement shall operate or be construed as a waiver thereof; nor shall any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

(h) If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction.

(i) For purposes of this Agreement, (a) the words "include," "includes," and "including" shall be deemed to be followed by the words "without limitation"; (b) the word "or" is not exclusive; and (c) the words "herein," "hereof," "hereby," "hereto," and "hereunder" refer to this Agreement as a whole. Unless the context otherwise requires, references herein: (x) to Sections, Annexes, Schedules, and Exhibits refer to the Sections of, and Annexes, Schedules, and Exhibits attached to, this Agreement; (y) to an agreement, instrument, or other document means such agreement, instrument, or other document as amended, supplemented, and modified from time to time to the extent permitted by the provisions thereof and (z) to a statute means such statute as amended from time to time and includes any successor legislation thereto and any regulations promulgated thereunder. This Agreement shall be construed without regard to any presumption or rule requiring construction or interpretation against the party drafting an instrument or causing any instrument to be drafted. All Annexes referred to herein shall be construed with, and as an integral part of, this Agreement to the same extent as if they were set forth verbatim herein.

(j) The headings in this Agreement are for reference only and do not affect the interpretation of this Agreement.

(k) This Agreement is accepted electronically when the User checks the certification box on the IBM Quantum platform confirming that the User has read and agrees to the relevant function license agreements when enabling Functions. It does not require physical signatures, and electronic acceptance through that certification shall have the same legal effect as execution of a written instrument.